



SPONSOR: Rep. Yearick & Sen. Buckson
Rep. Michael Smith; Sen. Hocker

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 104

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO POLICE OFFICER ARREST POWERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 1911, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1911. Police officers; statewide authority.

(c)(1) ~~An on-duty~~ Subject to paragraph (c)(2) and (c)(3) of this section, a police officer may arrest upon view and without a warrant at any location within the State any person when probable cause exists to believe that the person is committing or attempting to commit any crime which creates a substantial risk of death or serious physical injury to another person or which constitutes a violation of any of the following:

a. ~~§ 4177 of Title 21.~~ Section 4177 of Title 21 (driving under the influence).

b. Section 4175 of Title 21 (reckless driving).

c. Section 4175A of Title 21 (aggressive driving).

d. Section 4166 of Title 21 (overtaking and passing a stopped school bus).

(2) A police officer making an arrest under paragraph (c)(1) of this section shall, where acting outside of the officer's jurisdiction, take reasonable measures to notify the primary jurisdictional police agency as soon as practicable of the location of the crime and, if involving an offense under paragraph (c)(1)a. through (c)(1)d. of this section, the registration number of the vehicle, description of the vehicle, and number of occupants of the vehicle.

(d) ~~An "on-duty"~~ A police officer may arrest at any location in the State any person for any offense committed within the jurisdiction of the officer's employing agency and for whose arrest a warrant has been issued. The ~~"on-duty"~~ police officer shall, where acting outside of the officer's jurisdiction, take reasonable measures to notify the primary jurisdictional police agency of the intended time and place of the execution of the arrest warrant.

SYNOPSIS

This Act provides enhanced statewide jurisdiction for police officers, including county and municipal police officers. Specifically, this Act does the following:

(1) Enables an off-duty police officer to make arrests for offenses committed in the officer's presence when the crime creates a substantial risk of death or serious physical injury to another person.

(2) Enables an off-duty police officer to make arrests for certain serious traffic offenses committed in the officer's presence if the officer is operating a police vehicle equipped with emergency lights and a siren.

(3) Adds 3 additional traffic violations to the list of traffic violations for which a law enforcement officer may arrest for statewide when the traffic violations are committed in the officer's presence. The 3 additional traffic violations are: reckless driving, aggressive driving, and overtaking and passing a stopped school bus.

(4) Requires a police officer acting outside of the officer's jurisdiction to take reasonable measures to notify the primary jurisdictional police agency as soon as practicable of the location of the crime and, if involving a stop for 1 of the 4 permitted motor vehicle offenses, the registration number of the vehicle, description of the vehicle, and number of occupants of the vehicle.

(5) Enables an off-duty police officer to make an arrest at any location in the State of an individual for any offense committed within the jurisdiction of the officer's employing agency and for whose arrest a warrant has been issued.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a municipal charter, whether directly, by amendment to a specific municipality's charter, or, as in this Act, indirectly, by a general law.